

To
✓ The Estate Officer / Executive Officer
Cantonment Nasirabad.

Ajmer
Dated 17.03.07

Sub: - Notice under sec.5A (2) PP Act 1971
Ref: - Your No.87 dated 3.12.99

Sir,

1 This reminder is again submitted in continuation to earlier reminders about my house nos. 533 & 532, in above reference requesting your honour to drop action under PP act considering the following facts.

House No.	GLR Survey No.	Plot Area	Land Classification	Old Grant
533	280 / 752	1120 sft	B (3)	House Tax Paid upto 3/06
532	280 / 751	405 sft	B (3)	House Tax Paid upto 3/06

Land area of both the above houses cumulatively is 1525 sft of old grant, situated in Ramdayal mohalla Nasirabad, bound at site as below and shown in attached site plan.

On the North by: - Gully
On the South by: - Road
On the East by: - H.N. 534
On the West by: - RASTA

2. Encroachment on govt. land B (4) measuring 701 sft as reported by Overseer under PP act.

Overseer has objected land of both houses (i) of H.N.533 measuring 296 sft chabutra, a part of its total area 1120sft and (ii) of adjoining H.N.532 building site, measuring its total area 405 sft compounded to 701sft, noticed as encroachment on govt.land under PP act. The charge is absolutely wrong as below.

Land of both houses since origin is already classed B(3) old grant in GLR including 701sft objected land. Cantt has charged their house tax duly by legal notices. So action under PP act is not justified. Kutchra house No.532 deteriorated by rains over the years and lastly remains is its building site.

Overseer quotes sy.no.280/4485(pt) of noticed land, while sy.nos. of both house 532 / 533 in GLR is 280/751 & 752 duly specifying B(3) land old grant with areas 405 sft and 1120 sft. Objected land 701sft is vested duly within specified areas as part and parcel. No govt. land exists around both houses except public *rastas* / road so question of encroachment on B(4) does not arise. House tax of both houses throughout had been paid to Cantt. on demand notices and nothing is due up to 3/2006.

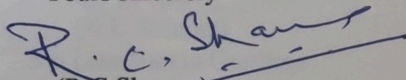
On one hand Cantt. has duly charged house tax of 532/533 throughout and on other hand overseer unscrupulously noticed encroachment measuring 701sft on govt.land, while in reality 701sft is legal parts of same 532/533 houses. It is harassment and strange reversal of justice, putting cantt. embarrassedly.

3 B(4) govt.land is untaxed and B(3) land houses are legally taxed. 701 sft objected land of H.N. 532 & 533 is B(3) old grant. It has never been B(4) govt.land. Cantt. despite of having realized house tax by legal notices duly assessed time to time over eighty years also confirm free of any dispute.

4 I request your honour to consider to drop the case under PP act, regularizing misunderstanding for good. Sir I'm senior citizen humbly pray to beg a favour for early disposal due to sickly health at 74 which sometimes may not permit physical presence on hearing dates.

Thanking you highly.

Yours sincerely


(R.C.Sharma)

S/o Late Narain Gordhan

1093'A'Balupura Road, Adarsh nagar,Ajmer

Encls. Site Plan

Submitted in
Person to E.O. in his
court room on 17/3/07